

ORDER SHEET

IN THE ISLAMABAD HIGH COURT, ISLAMABAD.
JUDICIAL DEPARTMENT.

W.P. No.1090/2022

Al-Haj Pakistan Exploration Limited**Versus**

Pakistan through Secretary Revenue, Islamabad, etc.

S. No. of order/ proceedings	Date of order/ Proceedings	Order with signature of Judge and that of parties or counsel where necessary.
	11.04.2022.	Mr. Saad M. Hashmi, Advocate for the petitioner. Syed Ishfaq Hussain Naqvi, Advocate for the respondents.

At the very outset, learned counsel for the parties apprised the Court that the matter is pending before the Appellate Tribunal Inland Revenue wherein petitioner has filed an appeal. On behalf of the petitioner it was contended that since the appeal is pending before competent forum, direction be issued to it for expeditious disposal of the matter and meanwhile department be restrained from recovery of disputed tax liability.

2. Learned counsel for the respondent department controverted the referred submission by learned counsel for petitioner.

3. Since the matter is pending before the forum of competent jurisdiction, it would be appropriate that the instant petition be disposed of with the direction as requested by learned counsel for the petitioner.

4. In view of the referred position, the instant petition is **disposed of** with direction to Appellate Tribunal Inland Revenue to decide the pending appeal, filed by the petitioner, within two months from the date of receipt of this order. During pendency of appeal, no 2

coercive measure shall be adopted for recovery of disputed tax liability. The petitioner shall also be granted protection/relief for 07-days from receipt of the order by Appellate Tribunal Inland Revenue.

(AAMER FAROOQ)
JUDGE

M. Shah/*